

1 **SENATE FLOOR VERSION**

2 February 25, 2025

3 COMMITTEE SUBSTITUTE
4 FOR

5 SENATE BILL NO. 484

By: Standridge and Hamilton

6
7 An Act relating to municipalities; defining terms;
8 requiring certain notice; prohibiting approval of
9 certain facility within certain locations; providing
10 certain exceptions; clarifying intent; providing for
11 codification; and declaring an emergency.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 43-116 of Title 11, unless there
15 is created a duplication in numbering, reads as follows:

16 A. As used in this section:

17 1. "Domestic violence shelter" means a facility providing
18 temporary housing and services for domestic violence victims;

19 2. "Domestic violence victim" means any person who:

20 a. does not have access to normal accommodations as a
21 result of violence or the threat of violence from a
22 cohabitant, and

23 b. otherwise meets the definition of a homeless person,
24 as provided in paragraph 4 of this subsection;

1 3. "Entity" means any individual, corporation, company, firm,
2 partnership, association, trust, state agency, government
3 instrumentality or agency, institution, county, incorporated
4 municipality, municipal authority, trust in which any governmental
5 entity is a beneficiary, venture, or other legal entity however
6 organized;

7 4. "Homeless person" means any person who:

8 a. lacks a fixed, regular, and adequate nighttime
9 residence,

10 b. has as a primary nighttime residence a publicly or
11 privately operated shelter designed to provide
12 temporary living accommodations, or

13 c. has as a primary nighttime residence a public or
14 private place not designed for, or ordinarily used as,
15 regular sleeping accommodations for a human being;

16 5. "Homeless shelter" means a facility providing temporary
17 housing and services for homeless persons;

18 6. "Unaccompanied minor" means any minor who:

19 a. is not in the physical custody of a parent or
20 guardian, and

21 b. otherwise meets the definition of a homeless person,
22 as provided in paragraph 4 of this subsection; and

23 7. "Youth shelter" means a facility providing temporary housing
24 and services for unaccompanied minors and includes, but is not

1 limited to, any such facility licensed or operated by the Department
2 of Human Services or the Office of Juvenile Affairs as a group home,
3 child care facility, or children's shelter.

4 B. In order to preserve public safety, the entity proposing any
5 zoning request to change or allow for the creation of a homeless
6 shelter in a municipality of this state with a population less than
7 three hundred thousand (300,000) according to the latest Federal
8 Decennial Census, in addition to the notice and public hearing
9 requirements provided for in Section 43-104 of Title 11 of the
10 Oklahoma Statutes, shall mail a written notice by regular first-
11 class mail within thirty (30) days of the hearing to all real
12 property owners at their last known address within one thousand
13 (1,000) feet of the proposed location of the homeless shelter, and
14 shall be responsible for all costs incurred in mailing this notice.
15 The notice shall contain the:

16 1. Legal description of the proposed property and the street
17 address or approximate location within the municipality;

18 2. Existing zoning requirements of the property and the
19 description of the change of zoning sought by the applicant; and

20 3. Date, time, and place of the public hearing.

21 In addition to the written notice requirements, notice of the
22 hearing shall be posted on the affected property at least twenty
23 (20) days before the date of the hearing.

1 C. The municipal governing body, municipal zoning commission,
2 or any other such body with zoning authority of the municipality
3 where the proposed homeless shelter is located, provided the
4 municipality meets the population requirements in subsection B of
5 this section, shall not approve any proposed homeless shelter if
6 such shelter would be located within three thousand (3,000) feet of
7 any school, school property, public library, municipal park, child
8 or adult day care facility, or prekindergarten facility.

9 D. Any homeless shelter that was properly zoned and approved at
10 its location on the effective date of this act shall be permitted to
11 continue operating and not be subject to relocation or closure. If
12 any school, school property, public library, municipal park, child
13 or adult day care facility, or prekindergarten facility is
14 established within three thousand (3,000) feet of any homeless
15 shelter after such homeless shelter has been properly zoned and
16 approved, the provisions of this section shall not be a cause for
17 the revocation or closure of such homeless shelter. Any change of
18 use from a homeless shelter at a location that was properly zoned
19 and approved on the effective date of this act shall subject such
20 location to the provisions of this act.

21 E. The provisions of this section shall not be construed to
22 apply to domestic violence shelters or youth shelters.

23 SECTION 2. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
4 February 25, 2025 - DO PASS AS AMENDED BY CS
5
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24